

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tileyah Williams	Team: Squad #3	CCRB Case #: 201909034	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/15/2019 4:29 PM	Location of Incident: § 87(2)(b) Avenue and § 87(2)(b) Avenue, 71s Precinct Stationhouse	Precinct: 71	18 Mo. SOL 4/15/2021	EO SOL 11/30/2021	
Date/Time CV Reported Tue, 10/15/2019 9:43 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 10/15/2019 9:43 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Anderson Thimote	16504	957399	071 DET
2. POM Frank Beers	17641	945498	071 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Anthony Blum	00426	948681	CRM CTL

Officer(s)	Allegation	Investigator Recommendation
A.POM Anderson Thimote	Abuse: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn Police Officer Anderson Thimote stopped the vehicle in which § 87(2)(b) was an occupant.	
B.POM Anderson Thimote	Abuse: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn Police Officer Anderson Thimote stopped the vehicle in which § 87(2)(b) was an occupant.	
C.POM Anderson Thimote	Abuse: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn Police Officer Anderson Thimote frisked § 87(2)(b)	
D.POM Anderson Thimote	Abuse: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn Police Officer Anderson Thimote searched § 87(2)(b)	
E.POM Frank Beers	Abuse: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn Police Officer Frank Beers frisked § 87(2)(b)	
F.POM Frank Beers	Abuse: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn Police Officer Frank Beers searched § 87(2)(b)	
G.POM Anderson Thimote	Abuse: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn Police Officer Anderson Thimote searched the vehicle in which § 87(2)(b) was an occupant.	
H.POM Anderson Thimote	Abuse: Police Officer Anderson Thimote detained § 87(2)(b)	
I.POM Anderson Thimote	Abuse: Police Officer Anderson Thimote detained § 87(2)(b)	
J.POM Anderson Thimote	Abuse: At the 71st Precinct stationhouse, Police Officer Anderson Thimote searched § 87(2)(b)'s vehicle.	
K.POM Frank Beers	Abuse: At the 71st Precinct stationhouse, Police Officer Frank Beers searched § 87(2)(b)'s vehicle.	

Case Summary

On May 9, 2020, § 87(2)(b) filed this complaint on behalf of himself and his friend, § 87(2)(b) via CCRB on-line processing system. This case was originally assigned to investigator Magdalena Azmitia and was subsequently reassigned to the undersigned investigator.

On October 15, 2021, at approximately 4:29 p.m., § 87(2)(b) was driving § 87(2)(b) to § 87(2)(b)'s residence at § 87(2)(b) in Brooklyn. As § 87(2)(b) approached § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn, he was stopped by Sgt. Anthony Blum, PO Frank Beers and PO Thimote Anderson, all anti-crime officers of the 71st Precinct (**Allegations A and B: Abuse of Authority, exonerated**). Officers allegedly smelled marijuana as they approached the vehicle and removed § 87(2)(b) and § 87(2)(b) from the vehicle. PO Thimote then frisked and searched § 87(2)(b) (**Allegations C and D: Abuse of Authority, exonerated**). PO Beers frisked and searched § 87(2)(b) (**Allegations E and F: Abuse of Authority, exonerated**). PO Thimote then searched § 87(2)(b)'s vehicle (**Allegation G: Abuse of Authority, exonerated**) and found a stack of credit cards and what he believed to be a credit card skimmer. The officers placed § 87(2)(b) and § 87(2)(b) in handcuffs and transported them to the 71st Precinct stationhouse for further investigation (**Allegations H and I, Abuse of Authority, unsubstantiated**). PO Beers and PO Thimote then conducted an inventory search of § 87(2)(b)'s vehicle at the stationhouse and found marijuana in the vehicle (**Allegations J and K: Abuse of Authority, exonerated**). § 87(2)(b) and § 87(2)(b) both received criminal court summonses § 87(2)(b).

The investigation obtained body-worn camera (BWC) videos from PO Thimote, PO Beers, and Sgt. Blum (01, 02, 03, 04, 05, 06 Board Review).

Findings and Recommendations

Allegation (A) Abuse of Authority: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn, Police Officer Anderson Thimote stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn, Police Officer Anderson Thimote stopped the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that on October 15, 2021, at approximately 4:29 p.m., § 87(2)(b) drove his 2014 white BMW 3-series sedan while § 87(2)(b) sat in the front passenger seat. All of § 87(2)(b)'s windows were tinted. It is also undisputed that Sgt. Blum, PO Thimote and PO Beers stopped § 87(2)(b)'s vehicle at § 87(2)(b) and § 87(2)(b) in Brooklyn. PO Thimote drove the police vehicle, while PO Beers sat in the front passenger seat, and Sgt. Blum sat in the back-passenger seat.

§ 87(2)(b) testified that he first noticed the officers' unmarked vehicle on § 87(2)(b) prior to arriving at § 87(2)(b) in Brooklyn (07 Board Review). Once § 87(2)(b) s

car was stopped, PO Thimote approached his driver's side, told him to roll his windows down, and turn off his music. PO Thimote further requested § 87(2)(b)'s driver license and registration. PO Beers approached his passenger's side of the car, and Sgt. Blum approached and stood near the back of his vehicle. § 87(2)(b) did not know why he was being stopped and thought it may have been for his tinted windows.

§ 87(2)(b) provided a phone statement regarding the incident but did not wish to be interviewed. § 87(2)(g)

§ 87(2)(b) did not know why the officers stopped them.

PO Thimote testified that he first observed § 87(2)(b) driving his car as it was two car lengths away from PO Thimote's vehicle (**09 Board Review**). PO Thimote saw that § 87(2)(b) had dark tints on all four of his windows, including his windshield, and told Sgt. Blum and PO Beers that he was stopping the car because of the tinting. PO Thimote then activated his turret lights, pulled up behind § 87(2)(b) and stopped him. PO Thimote was not sure if he explained to § 87(2)(b) why he stopped his car. PO Thimote did not recall whether he ultimately tested the tinting on the car. Sgt. Blum's testimony § 87(2)(g) that he did not know if PO Thimote said anything when he noticed § 87(2)(b)'s tinted windows and he did not remember who initiated the car stop (**10 Board Review**). Sgt. Blum did not remember what PO Thimote discussed with the occupants of the vehicle and whether they discussed why they were stopped. Sgt. Blum did not test § 87(2)(b)'s tinting and did not know if PO Beers and PO Thimote did so. § 87(2)(g) PO Beers added that he could not see inside of § 87(2)(b)'s car. He did not remember if there was any discussion about what officers would do but knew that PO Thimote made the decision to stop § 87(2)(b). PO Beers did not remember whether he had any discussion with the occupants of the vehicle before asking them to exit.

Although Sgt. Blum did not recall who made the decision to stop § 87(2)(b) and § 87(2)(b), both PO Beers and PO Thimote stated that PO Thimote made the decision. § 87(2)(g)

NYPD Event § 87(2)(b) generated regarding this incident notes that officers reported that they were investigating a possible crime for a suspicious vehicle at § 87(2)(b) Avenue and § 87(2)(b) Avenue (**12 Board Review**). According to the Event, the stop resulted in two arrests.

PO Thimote, PO Beers' and Sgt. Blum's BWC recordings in IA's 50, 52 and 53 show that as the officers approach § 87(2)(b)'s vehicle, the four side windows on § 87(2)(b)'s car, the windshield, and the rear window are dark and it is difficult to see through them (**01, 04, 06 Board Review**). None of the officers' BWC show them discussing the reason for the stop to § 87(2)(b) and § 87(2)(b) during the time when there is audio in the video. PO Thimote's BWC from IA 53 shows he arrives to § 87(2)(b)'s driver's side door (**01 Board Review**). § 87(2)(b) then looks up at him and then starts looking around the car. At this point, the camera had not began recording the audio. The camera does not show what § 87(2)(b) looked for and whether he gave it to PO Thimote. PO Beers' BWC from

IA50, does not show him having any interaction with § 87(2)(b) as he approached the passenger's side door (**04 Board Review**). Sgt. Beers stood at the rear of § 87(2)(b)s. Initially, he did not interact with § 87(2)(b) or § 87(2)(b) (**06 Board Review**).

NYS Vehicle & Traffic Law § 375(12-a)(b) states that no person shall operate any motor vehicle upon any public highway, road or street if the front windshield or side windows are treated with any material which has a light transmittance of less than seventy-percent (**13 Board Review**).

§ 87(2)(g)

PO Thimote, PO Beers, Sgt. Blum and § 87(2)(b) all testified that § 87(2)(b)s vehicle had tinted windows. § 87(2)(b) did not describe the percentage of his tints nor how dark they were. Although none of the officers testified to testing the tinting, PO Thimote described the tinting as dark and PO Beers said that he could not see inside of the car. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegations A and B** be closed as *exonerated*.

Allegation (C) Abuse of Authority: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn, Police Officer Anderson Thimote frisked § 87(2)(b)

Allegation (D) Abuse of Authority: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn, Police Officer Anderson Thimote searched § 87(2)(b)

Allegation (E) Abuse of Authority: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn, Police Officer Frank Beers frisked § 87(2)(b)

Allegation (F) Abuse of Authority: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn, Police Officer Frank Beers searched § 87(2)(b)

§ 87(2)(b) testified that after PO Thimote took his driver license and registration, he went to his unmarked vehicle for approximately 10 to 15 minutes (**07 Board Review**). PO Thimote then returned and told § 87(2)(b) to step out of his vehicle. § 87(2)(b) and § 87(2)(b) both exited the vehicle and walked to the rear of their car. PO Thimote then patted § 87(2)(b)s whole body down and entered his pockets. § 87(2)(b) wore gray sweatpants, a hooded sweatshirt and black sneakers. He did not specify which pockets PO Thimote entered. § 87(2)(b) knew that PO Thimote searched § 87(2)(b) but did not see him do so. PO Thimote removed a prescription pill bottle from § 87(2)(b)s pocket which contained less than one gram of marijuana crumbs. § 87(2)(b) did not testify anything else regarding marijuana possession.

§ 87(2)(b) § 87(2)(b) stated that when the officers pulled them over, they said that they smelled marijuana and then asked § 87(2)(b) and § 87(2)(b) to get out of the car (**08 Board Review**). § 87(2)(b) did not know if anyone smoked marijuana in the car

before they were pulled over. § 87(2)(b) did not further discuss whether he or § 87(2)(b) were in possession of marijuana. § 87(2)(b) said that he was not searched until officers placed him in handcuffs. He did not mention whether § 87(2)(b) was searched and did not say anything about himself being frisked.

PO Thimote testified that as he approached § 87(2)(b)'s vehicle, he smelled burnt marijuana (**09 Board Review**). PO Thimote stated that he had received training and had previous experience on identifying marijuana by look and smell. PO Thimote did not know how many arrests he had which included marijuana. Upon smelling marijuana, he signaled this to PO Beers and Sgt. Blum by pointing to his nose and PO Beers returned the signal. PO Thimote did not know if § 87(2)(b)'s windows were down as he approached it but knew that once he got to the car, the windows were down. He then asked § 87(2)(b) for his credentials and shortly after asked him to step out of the car. PO Thimote did not tell § 87(2)(b) that he smelled marijuana for safety reasons. PO Thimote frisked § 87(2)(b)'s torso and pockets for weapons although he did not see any bulges or shapes that led PO Thimote to believe that § 87(2)(b) had weapons. There were no specific weapons that PO Thimote believed § 87(2)(b) had. PO Thimote was not sure if he entered any of § 87(2)(b)'s pockets at that point and he did not find anything on § 87(2)(b). PO Thimote clarified that he looked in § 87(2)(b)'s pants pockets and waist band later in the incident, when he determined that he would be taking him to the stationhouse. He found one container of marijuana in § 87(2)(b)'s pants pocket. PO Thimote did not search § 87(2)(b) and believed that PO Beers dealt with him.

PO Beers testified that as he approached § 87(2)(b)'s car, all the windows were rolled down and he smelled marijuana coming from the vehicle (**11 Board Review**). He did not remember if it smelled like burnt or unburnt marijuana. PO Beers did not testify about his training and experience with marijuana. PO Beers then informed PO Thimote that he smelled marijuana and did not recall if he did this verbally. He did not remember if either Sgt. Blum or PO Thimote said anything to him about smelling marijuana. PO Beers then asked § 87(2)(b) to exit the vehicle, while PO Thimote had § 87(2)(b) exit the vehicle. PO Beers frisked § 87(2)(b)'s waist and pockets for weapons, but he did not remember seeing any bulges on § 87(2)(b). There were no weapons that PO Beers thought § 87(2)(b) had. PO Beers felt a hard object in one of § 87(2)(b)'s pockets, took it out, and when he realized it was not a weapon, he returned it. PO Beers did not remember how big this object was and he did not remember what he thought it was. He did not recall going in any other of § 87(2)(b)'s pockets. PO Beers could not see what was happening on the driver's side of the vehicle.

Sgt. Blum testified that he stood near the rear of § 87(2)(b)'s vehicle when they approached it (**10 Board Review**). When PO Thimote obtained § 87(2)(b)'s documents, he gave his license to Sgt. Blum to search their database. PO Thimote then informed Sgt. Blum that he wanted to remove the occupants from the vehicle because he smelled marijuana. Sgt. Blum could not smell marijuana from where he was standing and did not testify to ever smelling marijuana. Sgt. Blum saw PO Thimote remove § 87(2)(b) from the vehicle and pat down his full body. He did not remember if PO Thimote went into § 87(2)(b)'s pockets. Sgt. Blum could not see what PO Beers did to § 87(2)(b) but knew that he frisked him. Sgt. Blum did not believe that PO Thimote searched § 87(2)(b).

PO Thimote's BWC from IA 53, starting at 1:04 minute, shows that he asks § 87(2)(b) to step out of his car and it is apparent that he made contact with § 87(2)(b)'s body but neither his hands nor § 87(2)(b)'s full body are in view **(01 Board Review)**. § 87(2)(b) is wearing a loose-fitting black sweatshirt with the hood over his head. The footage does not fully show what he is wearing on bottom. § 87(2)(b) is silent and complies with PO Thimote's request to step out, § 87(2)(b) stands still while PO Thimote makes contact with him. At 1:28 minutes, the recording shows that PO Thimote zips up § 87(2)(b)'s front right sweatpants pocket.

PO Beers' BWC from IA50 shows that at 1:20 minute, he asks § 87(2)(b) to exit the vehicle and uses his hands to make physical contact with § 87(2)(b) **(03 Board Review)**. § 87(2)(b) complies and stands still and silent once he exits the vehicle. § 87(2)(b) is wearing a navy-blue t-shirt under a navy blue zipped up sweater with navy blue sweatpants. His sweater hood is over his head and he is wearing a black jean jacket over it. All of his clothing was of a normal fit. The recording does not capture the full interaction because it is not in view. At 1:28 minutes, PO Beers squeezes § 87(2)(b)'s front jacket pockets while asking him if anything, including marijuana and drugs, was in the car. He then puts his hand inside of § 87(2)(b)'s front and inside jacket pockets. PO Beers and PO Thimote were on opposite sides of the car and their BWCs do not capture the other's initial interactions with § 87(2)(b) and § 87(2)(b).

Sgt. Blum's BWC from IA 52 shows that at 1:06 minute, PO Thimote asks § 87(2)(b) to step out of his vehicle **(06 Board Review)**. § 87(2)(b) exits his vehicle and holds both of his arms up, while PO Thimote uses both of his open palms to pat § 87(2)(b)'s back and torso. This recording does not show where else PO Thimote pats down or whether he searches § 87(2)(b) because their lower bodies are out of view. At 1:26 minutes, this recording shows that PO Beers is making contact with § 87(2)(b) as § 87(2)(b) holds his arms up. It does not capture which body parts PO Beers contact or whether he is frisking and/or searching § 87(2)(b). At 4:19 minutes, PO Beers places § 87(2)(b) in handcuffs, and at 4:32 minutes, PO Beers goes into § 87(2)(b)'s left inner jacket pocket, removes a plastic material which looks like a clear bag, and then places it back into his pocket. He continues to make physical contact with § 87(2)(b)'s body, but it is not in view.

Where there is a reasonable belief before the search begins that an automobile contains contraband or evidence of a crime, this constitutes probable cause to stop and search the vehicle lawfully without a warrant, People v. Chestnut, 43 A.D.2d 260 (1974) **(14 Board Review)**. Similarly, a warrant is unnecessary to search the occupants of the vehicle where there is probable cause to believe that the individuals are guilty of a crime rather than merely a simple traffic infraction. People v Norman, 142 A.D.3d 1107 (2016) also notes that when officers detect the odor of marijuana emanating from a parked vehicle, they have probable cause to search that vehicle without a warrant **(15 Board Review)**.

An officer may frisk an individual if the officer reasonably believes that the individual is armed and dangerous. People v. DeBour 40 N.Y.2d 210 (1976) **(16 Board Review)**. NYPD

Patrol Guide Procedure 212-11 explains that a search is a greater intrusion than a frisk (**17 Board Review**).

PO Thimote and PO Beers testified that they smelled marijuana coming from § 87(2)(b)'s vehicle as they approached it, although PO Beers did not recall whether the smell was of a burnt or unburnt marijuana. Neither § 87(2)(b) nor § 87(2)(b) testified to being in possession of marijuana. § 87(2)(g)

It is therefore recommended that **Allegations D and F** be closed as *exonerated*.

PO Beers testified that he did not remember seeing any bulges on § 87(2)(b) but that he frisked his waist and pockets for weapons. He further stated that there were no weapons that he thought § 87(2)(b) had. PO Thimote stated that he frisked § 87(2)(b)'s torso and pockets for weapons although he did not see any bulges or shapes that led him to believe that § 87(2)(b) had weapons. There were no specific weapons that PO Thimote believed § 87(2)(b) had. Neither PO Beers nor PO Thimote frisked § 87(2)(b) and § 87(2)(b) for any weapons in particular and PO Thimote recalled that he did not see any indication that § 87(2)(b) had any weapons. From the officer's testimonies, they did not consider § 87(2)(b) and § 87(2)(b) to be armed and dangerous. § 87(2)(b)

It is therefore recommended that **Allegations C and E** be closed as *exonerated*.

Allegation (G) Abuse of Authority: At § 87(2)(b) Avenue and § 87(2)(b) Avenue in Brooklyn, Police Officer Anderson Thimote searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Thimote searched § 87(2)(b) vehicle on the scene prior to making the decision to remove him and § 87(2)(b) to the stationhouse.

§ 87(2)(b) testified that after PO Thimote found the pill bottle with marijuana in his pocket, he searched § 87(2)(b)'s car **(07 Board Review)**. § 87(2)(b) recalled that the officers searched the car but could not see where they searched because he was in the back of the car **(08 Board Review)**.

PO Thimote stated that he looked in § 87(2)(b)'s vehicle, in the center console to search

for weapons (**09 Board Review**). He did not specify why he believed there would be weapons in the car. Sgt. Blum testified that once § 87(2)(b) and § 87(2)(b) were at the rear of the vehicle with him and PO Beers, he saw PO Thimote lean into the driver's side of § 87(2)(b)'s car but could not see what PO Thimote was doing in the vehicle (**10 Board Review**). PO Thimote did not inform Sgt. Blum whether he was looking for anything specific in the vehicle. Sgt. Blum believed that PO Thimote was looking for marijuana since he told him that he smelled it earlier. PO Beers also recalled that PO Thimote searched § 87(2)(b)'s car by himself while he, Sgt. Blum, § 87(2)(b) and § 87(2)(b) stood at the rear of the vehicle (**11 Board Review**). PO Thimote did not tell PO Beers what he was looking for and PO Beers could not see what PO Thimote was searching in the car.

PO Thimote's BWC recording from IA 53, shows that at 1:56 minute, he uses his hands to move objects in the bottom of § 87(2)(b)'s driver's side door panel (**01 Board Review**). He takes out a prescription pill bottle and a few unidentifiable objects from the door panel and places them back. He then turns toward the inside of § 87(2)(b)'s car and leans over the driver seat. The recording does not show if and what he contacts. At 3:27 minutes of the recording, the view depicts a stack of credit cards bound together with a white object, which looks like a square card reader, connected to one of the cards. At 3:30 minutes, PO Thimote calls PO Beers to the car and tells him that he found a credit card reader. The officers then place § 87(2)(b) and § 87(2)(b) in handcuffs. Sgt. Blum's BWC recording from IA 52, shows that at 1:49 minutes, while Sgt. Blum is at the rear of § 87(2)(b)'s vehicle with PO Beers and § 87(2)(b), PO Thimote bends over into § 87(2)(b)'s driver's side of his car (**06 Board Review**). The recording does not show where PO Thimote is looking in the car. PO Beers' BWC recording from IA 50, does not show PO Thimote search the vehicle (**03 Board Review**). The officers' BWC don't show any officer beside PO Thimote searching the car.

NYPD Property Clerk Invoice § 87(2)(b) notes that PO Thimote vouchered two ziplock bags of marijuana, one clear container of marijuana, and one black container of marijuana, all in a vegetative state (**18 Board Review**). It does not note any credit cards or credit card reader.

Where there is a reasonable belief before the search begins that an automobile contains contraband or evidence of a crime, this constitutes probable cause and a search of the vehicle may lawfully proceed without a warrant. People v. Chestnut, 43 A.D.2d 260 (1974) (**14 Board Review**). People v. Norman, 142 A.D.3d 1107 (2016) notes that when officers detect the odor of marijuana emanating from a parked vehicle, they have probable cause to search that vehicle without a warrant (**15 Board Review**).

§ 87(2)(g)

§ 87(2)(b) did not know about anyone smoking marijuana in the car before they were stopped. Neither § 87(2)(b) nor § 87(2)(b) testified to having marijuana. However, PO Thimote found marijuana on § 87(2)(b)'s person and more containers in the vehicle during the

subsequent search. § 87(2)(g)

and it is therefore recommended that **Allegation G** be closed as *exonerated*.

Allegation (H) Abuse of Authority: Police Officer Anderson Thimote detained

§ 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Anderson Thimote detained § 87(2)(b)

It is undisputed that while PO Thimote searched § 87(2)(b)'s car, he found a stack of credit cards and a machine that gathers information from credit cards. He then made the decision to take § 87(2)(b) and § 87(2)(b) to the stationhouse. It is also undisputed that § 87(2)(b) was not charged with any crime related to the credit cards and machine.

§ 87(2)(b) testified that while PO Thimote searched his car, PO Thimote said something to PO Beers about scammers (**07 Board Review**). PO Thimote then told § 87(2)(b) that he found the stack of cards and the Square reader and § 87(2)(b) told him that it was for his business. § 87(2)(b) recalled that the stack of cards was bundled together in a rubber band, in the center console. The stack included § 87(2)(b)'s debit and credit cards, business cards, membership cards and MetroCards. § 87(2)(b) also had a Square credit card reader for his business reselling streetwear. PO Thimote told § 87(2)(b) that the cards had different names on them. PO Thimote then placed § 87(2)(b) and § 87(2)(b) in handcuffs. § 87(2)(b) asked if he was being detained too, since he had nothing to do with the car. PO Thimote responded that he was being detained since the cards could belong to either one of them because they were found in the center console. § 87(2)(b) and § 87(2)(b) were taken to the 71st Precinct stationhouse at 4:00 p.m. where they remained in a holding cell until approximately 6:30-7:00 p.m. § 87(2)(b) asked PO Thimote to show him the cards, but PO Thimote told him not to worry about it and that § 87(2)(b) would be let go after they investigated.

During his CCRB interview, § 87(2)(b) showed the investigation a stack of cards that were in his vehicle during the incident (**19 Board Review**). They were originally bound together by two blue rubber bands. Apart, they were a Wells Fargo debit card, Santander debit card, Capital One credit card, a Zales credit card an unidentifiable black credit card, all with § 87(2)(b)'s name on them.

§ 87(2)(b) testified that once officers saw the stack of credit cards, they placed him in handcuffs without explanation (**08 Board Review**). They then transported him to the stationhouse.

PO Thimote testified that when he found more than 20 credit cards in a rubber band and a

white scanner in the center console, he looked at some of the cards and noticed that they did not contain the names of either of the vehicle occupants (**09 Board Review**). PO Thimote was not sure which information the cards had on them. He did not know if they had someone else's name. PO Thimote knew that the scanner could be used to get information from the cards. PO Thimote had seen similar machines prior to the incident from arrests. PO Thimote did not recall how many arrests he made which involved skimming and swiping machines. PO Thimote clarified that when he first noticed the machine, he did not know what it would be used for and had to check and determine whether it is used for transactions or to get information from the credit card. PO Thimote has received training in the past on skimming and swiping machines and he did not remember when and where this training happened. When using a skimmer, an individual can get the card owner's name and card number. PO Thimote asked § 87(2)(b) who the credit cards belonged to and the first time the § 87(2)(b) said that he did not know. The second time that PO Thimote asked, § 87(2)(b) said that the cards belonged to his cousin. PO Thimote saw that the cards all had different names. Sgt. Blum decided that they would bring the credit cards back to the stationhouse for further investigation. PO Thimote later used a system at the stationhouse and determined that the cards were not fraudulent.

PO Beers recalled that at some point while PO Thimote searched the car, he called PO Beers to the driver's side of the car and showed him credit cards and skimmer (**11 Board Review**). PO Beers did not recall what the skimmer looked like, but he had seen similar devices before. PO Beers said that skimmers and credit card readers did not really have a difference and served the same function of reading magnetic strips on credit cards. PO Beers had made approximately ten arrests involving skimmers before. These types of arrests occurred frequently in the 71st precinct around the incident date. PO Thimote told PO Beers that he found them in the center console of the vehicle. PO Beers did not examine the credit cards and PO Thimote did not explain whether these cards looked suspicious to him and why he believed that they were associated with a crime. PO Thimote made the decision to take § 87(2)(b) and § 87(2)(b) back to the stationhouse because of the skimmer and credit cards. PO Beers did not recall whether the occupants of the car provided any explanation regarding the credit cards and the skimmer. PO Beers went back to the rear of the vehicle, placed § 87(2)(b) and § 87(2)(b) in handcuffs and transported them back to the 71st Precinct stationhouse.

Sgt. Blum testified that after PO Thimote searched § 87(2)(b)'s car, he and PO Beers then informed Sgt. Blum that they were going to arrest § 87(2)(b) and § 87(2)(b) (**10 Board Review**). Sgt. Blum overheard the officers tell the occupants that they found credit cards and a skimmer in the car. Sgt. Blum knew that at the time there was a city-wide pattern of credit card theft and identity fraud and thought that § 87(2)(b) having many credit cards and a skimmer was suspicious. In the past, people have reprogrammed gift cards with an individual's credit card information. Sgt. Blum had not seen the skimmer at that point. Once they arrived at the stationhouse, Sgt. Blum, PO Beers and PO Thimote investigated the credit cards and determined that they were valid.

Sgt. Blum's BWC from IA 52, shows at 3:20 minutes that PO Thimote is leaning into § 87(2)(b)'s car (**06 Board Review**). At this point, Sgt. Blum and PO Beers are at the rear of the vehicle with § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b)

have their backs toward the vehicle, while Sgt. Blum and PO Beers face them and PO Thimote. PO Thimote then stands up and displays an unidentifiable object in his right hand to PO Beers. PO Beers then walks over to the car and he and PO Thimote can be seen having a discussion, although the recording does not capture what they are saying. At 3:41 minutes PO Beers walks back to Sgt. Blum. At 4:00 minutes, PO Thimote walks toward Sgt. Blum and makes a hand signal with two closed fists in front of his body, one crossing over the other. PO Thimote then says, “92” and proceeds to tell § 87(2)(b) to turn around. PO Thimote places handcuffs on § 87(2)(b) while PO Beers places handcuffs on § 87(2)(b). § 87(2)(b) and § 87(2)(b) ask why they are being arrested and PO Thimote says that there were credit cards. § 87(2)(b) said that they were his credit cards and PO Thimote said that they would figure it out back at the precinct. § 87(2)(b) then asks, “What stack of cards?” and then says to show him the stack of cards. He further stated that they were not his cards. At 4:43 minutes, Sgt. Blum asks § 87(2)(b) if he had a skimming device. § 87(2)(b) responded, “No, that’s not even mine, that’s my cousin’s. He works at a farm shop.” Sgt. Blum then explains that having a skimming device is illegal and that if his credit cards were good, that he would be let go with a ticket for the vehicle. § 87(2)(b) and § 87(2)(b) are then put into the officers’ vehicle and transported to the stationhouse. All officers’ BWC ended once § 87(2)(b) and § 87(2)(b) were lodged into the holding cells at the stationhouse. PO Beers and PO Thimote had additional footage of their inventory search. PO Thimote’s last recording was of him releasing § 87(2)(b) and § 87(2)(b). The rest of the officers’ investigation was not captured on BWC.

§ 87(2)(g)

People v. Debour 40 N.Y.2d 210 (1976) notes that in detaining individuals, officers must have reasonable suspicion that the individual had committed a crime (**16 Board Review**). According to New York State Penal Law §190.86, a person is guilty of unlawful possession of a skimmer device in the second degree when he or she possesses a skimmer device with the intent that such device be used in furtherance of the commission of the crime of identity theft or unlawful possession of personal identification information (**20 Board Review**). A person is guilty of identity theft in the second degree when he or she knowingly and with intent to defraud assumes the identity of another person by presenting himself or herself as that other person, or by acting as that other person or by using personal identifying information of that other person, New York State Penal Law §190.80 (**21 Board Review**).

Officers testified that § 87(2)(b) and § 87(2)(b) were taken to the stationhouse to further investigate the cards and the alleged skimmer. When PO Thimote found the device, he did not know what a skimmer was used for. He stated that he did not see § 87(2)(b) or § 87(2)(b)’s names on the cards that he found but that he was not sure what information was on them nor whether they had anyone else’s name on them. PO Thimote testified that when he asked § 87(2)(b) about the cards, § 87(2)(b) first told him that he did not know and then said that they were his cousin’s. BWC footage showed that PO Thimote never asked § 87(2)(b) who the cards belonged to and that in a separate

conversation, § 87(2)(b) told Sgt. Blum that the skimmer belonged to his cousin. § 87(2)(b)

Allegation (J) Abuse of Authority: At the 71st Precinct stationhouse, Police Officer Frank Beers searched § 87(2)(b) s vehicle.

§ 87(2)(b) noticed that when he returned to his car, it was messy and everything from the center console was on the floor (**07 Board Review**).

PO Thimote's BWC recording from IA54, starting from the beginning, shows that he and PO Beers are walking toward § 87(2)(b)'s car. At 30 seconds, he and PO Beers start looking around § 87(2)(b)'s car **(02 Board Review)**. The car appears to be in the stationhouse's parking lot. They search the door panels, the center console, the trunk, the vicinity of the driver and front passenger seat floor and through paper documents that were kept in a folder. They search the car for approximately nine minutes. PO Beers' BWC from IA 51 depicted the same activity **(04 Board Review)**. It is not clear from the BWC whether the officers recovered anything from this search.

NYPD Property Clerk Invoice 3001169554 notes that PO Thimote vouchered two ziplock bags of marijuana, one clear container of marijuana and one black container of marijuana, all in a vegetative state (**16 Board Review**). PO Timote issued § 87(2)(b) and § 87(2)(b) criminal court summonses § 87(2)(b)

The NYPD Patrol Guide Procedure 218-13 (**26 Board Review**) states that, whenever any property comes into the custody of this department an inventory search will be conducted. The Procedure specifies that, if the property in question includes a vehicle, officers should search the interior of the vehicle thoroughly. “The search includes the glove compartment, console, map pockets in or on doors, map pockets on rear and side of seats, areas under the seats and in and around the seat stuffing and springs, under the floor mats, under and behind the dashboard, inside the ashtray, in the air vents, under the hood and in the trunk. NYPD Patrol Guide Procedure 212-123 further notes that BWC must be activated when searching an individual and their belongings (**27 Board Review**). NYPD Patrol Guide Procedure 212-08 notes that officers should make note of all tasks that they perform (**28 Board Review**).

When PO Thimote decided to further investigate the credit cards that he found in § 87(2)(b)'s vehicle, they detained § 87(2)(b) and § 87(2)(b). They then transported § 87(2)(b)'s vehicle to the stationhouse. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations J and K** be closed as *exonerated*.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been parties (**29 Board Review**).
- PO Thimote has been a member of service for six years and has been a subject in six other CCRB complaints and 17 allegations, none of which were substantiated. PO Thimote's CCRB history shows that he has three previous vehicle search allegations, two of which were closed as mediation attempted and one as exonerated. He has two previous vehicle stop allegations, one of which was closed as mediation attempted and one as exonerated.
- PO Beers has been a member of service for 13 years and has been a subject in 11 other CCRB complaints and 26 allegations, none of which were substantiated. PO Beers' CCRB history shows that he has three previous frisk allegations, one of which was closed as complainant uncooperative, one as unsubstantiated and the other as exonerated. He has two previous search of a person allegations, one of which was closed as unsubstantiated and the other as exonerated. He has three previous vehicle search allegations, two of which were closed as exonerated and one as unsubstantiated.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of November 10, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**30 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 [REDACTED]
 [REDACTED]

Squad: 3

Investigator:	<u>Tileyah Williams</u>	<u>Investigator Tileyah Williams</u>	<u>09/03/2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Olga Golub</u>	<u>IM Olga Golub</u>	<u>09/03/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date